

SENATE BILL 822

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to assessments administered to students
who receive instruction through virtual means.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 60, is amended by adding the following as a new section:

(a) Notwithstanding another law to the contrary and except as provided in subsection (b), a virtual school, as defined in § 49-16-203, or virtual education program, operating in accordance with chapter 16, part 1 of this title, may administer a Tennessee comprehensive assessment program (TCAP) test, or a successor test, in a virtual setting that aligns with the student's regular academic instruction, if:

(1) The TCAP test is administered to students in a virtual setting on a date, and at a time, determined by the virtual school, or by the public school providing the virtual education program, that occurs during the test administration window established by the commissioner of education for the TCAP test, pursuant to § 49-6-6002;

(2) The TCAP test is administered to students in a virtual setting during a synchronous assessment session initiated and managed by the virtual school, or by the public school providing the virtual education program;

(3) The TCAP test is administered to students in a virtual setting and monitored by a proctor through video means for the duration of the administration of the TCAP test, except as provided in subsection (c);

(4) The virtual school, or the public school providing the virtual education program, strives to maintain a student to proctor ratio of no less than one (1) proctor for every ten (10) students for the TCAP test being administered in a virtual setting;

(5) The virtual school, or the public school providing the virtual education program, does not allow a student who is administered the TCAP test in a virtual setting to exit the room in which the test is being administered until instructed to do so by the proctor; and

(6) The submission of the TCAP test administered to students in a virtual setting must be verified by the assessment proctor.

(b) The department shall ensure that TCAP tests are available to be offered in a virtual setting in accordance with this section.

(c) If the device on which a TCAP test is administered in a virtual setting does not allow for integrated camera proctoring, then a student who is administered a TCAP test in a virtual setting must use one (1) device to take the test and one (1) device for the student to be video monitored by a proctor for the duration of the administration of the test. If a second device is needed pursuant to this subsection (c), then the virtual school, or the public school providing the virtual education program, must provide the second device. This subsection (c) does not require the use of a second device if the assessment platform allows for the assessment proctor to view the student and the student's background during the assessment's administration.

(d) The department of education may adopt standards for the administration of TCAP tests in virtual settings in accordance with this section to ensure that TCAP tests are administered in a secure environment.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to TCAP tests administered to students in the 2026-2027 school year and each school year thereafter.